BY ORDER OF THE SECRETARY OF THE AIR FORCE

HEADQUARTERS OPERATING INSTRUCTION 90-4

8 July 2005

Command Policy

PROCEDURES FOR AIR FORCE WITNESSES PARTICIPATING IN CONGRESSIONAL COMMITTEE HEARINGS

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction establishes procedures for Air Force witness(es) participating in Congressional committee hearings. These procedures, approved by the Secretary of the Air Force, will assist Secretariat and Air Staff witness(es) in making effective and responsible presentations to Congressional committees. This instruction does not cover procedures for appearances of Air Force witness(es) before Appropriations and Budget committees or at annual authorization of appropriations hearings under United States Code, Title 10, Section 114. This publication implements AFPD 90-4, *Relations With Congress*.

SUMMARY OF REVISIONS

United States Code, Title 10, Section 138 (10 USC § 138) has been renumbered 10 USC § 114. The required number of workdays increased for a witness statement to clear through Office for Security and Policy Review (SAF/PAX) to ensure sufficient time for a proper review. Committee rule requires witness statements be provided on a 3.5 inch disk in Microsoft Word, ASCII or DOS text format along with the number of hard copies. DD Form 2136 is no longer used for Inserts/Questions for the Record (IFR/QFR), use bond paper with proper format (provided by SAF/LL). An asterisk (*) indicates revision from the previous edition.

1. Terms Used:

1.1. Congressional Hearing. A session of a Congressional (Senate, House, or Joint) committee or subcommittee to receive testimony from witness(es) in connection with a matter the committee or subcommittee has under consideration. The session may be open (to the

public) or closed (to the public). Except for unusual cases, at a closed session (also referred to as an executive session) only members of the committee, staff, and witness(es) are present.

1.2. Principal Witness(es). The person (or persons) designated by the committee, DoD, or the Air Force as being responsible for presenting testimony on the subject under consideration.

1.3. Supporting Witness(es). Person (or persons) who possess detailed information or knowledge on the subject under consideration and are assigned to provide backup data for the witness(es). A supporting witness may or may not be called to testify, but should be prepared to do so.

1.4. Staff Team. Personnel designated to take part in hearing preparation.

1.5. Staff Team Chief. The responsible head of the group of members designated to prepare for a hearing.

***1.6. Congressional Posture Team.** Representatives from the Secretariat and Air Staff designated to take part in hearing preparations.

***1.7. Chief of Congressional Posture Team**. The responsible head of the Posture Team designated to prepare the SECAF, CSAF, USECAF, and VCSAF (Top 4) witnesses for hearings.

2. Responsibilities of the Director of Legislative Liaison. Under the Secretary of the Air Force Order 112.1, October 29, 1997, the Director of Legislative Liaison (SAF/LL) has the authority and responsibility for processing and preparing the reply to an inquiry from a Congressional committee (except Appropriations and Budget committees), and arranging the presentation of Air Force-related testimony at any hearing held by a committee under its investigative or legislative authorities. This authority of SAF/LL is subject to the direction and control of the Secretary of the Air Force. SAF/LL monitors all Air Force-related hearings by Congressional committees. When the hearing is conducted by an Appropriations or Budget committee, the Director of Budget performs the function of preparing testimony and monitoring the hearing. (Budget Enactment Instructions (BEIs) establish the guidance and procedures for hearings under cognizance of the Director of Budget.)

3. Preparing for the Hearing. The Air Force prepares for a hearing as follows:

***3.1. SAF/LLZ (Congressional Action Division)** is responsible for hearings involving the Top 4. The following procedures apply for Top 4 hearings:

***3.1.1.** The Congressional Posture Chief sets up study sessions (skulls) for Top 4 principals.

***3.1.2.** Congressional Posture Chief directs the Posture Team to provide hearing preparation material.

***3.1.3.** Congressional Posture Chief and the SAF/LLZ hearing officer determine the attendees to the skulls.

***3.1.4** SAF/LLZ hearing officer coordinates Air Force Television coverage for the hearing and any transportation logistics required.

***3.2 SAF/LLW (Weapons Systems Liaison Division) and SAF/LLP (Programs and Legislation Division)** are responsible for hearings when the witness(es) are two-letter representatives.

3.2.1. SAF/LL sends the Secretary and all appropriate DoD offices a hearing announcement which:

3.2.1.1. Indicates the Office of Primary Responsibility (OPR) requested to develop and present the Air Force testimony. It lists the subject, SAF/LL liaison officer, hearing subject, committee, date/time/place, and witness(es).

3.2.1.2. Requests the OPR designate a staff team chief.

3.2.1.3. The OPR works with SAF/LL liaison officer and staff team chief on all matters pertaining to the hearing.

3.2.2. SAF/LL is responsible for all coordination between the Air Force and Congress related to hearings covered under this instruction.

3.2.3. Immediately upon selection, the staff team chief should contact the SAF/LL liaison officer for a detailed report on the nature and scope of the hearing.

3.2.4. The staff team chief immediately notifies the SAF/LL liaison officer of any desired changes to seek committee concurrence.

3.2.5. The staff team chief determines the make up of his staff team members. The SAF/LL liaison officer assists the staff team chief as required.

3.2.6. To ensure the most complete, accurate, and responsible testimony is available, the staff team chief, assisted by SAF/LL and team members, arranges meetings with the witness(es) to determine the scope and content of testimony. These meetings are an essential part of successful preparation, since plans for a complete and effective presentation are formulated during these discussions. After the meeting, the staff team chief prepares a proposed statement for the principal witness and, if required, statements for supporting witness(es).

4. Coordination of Prepared Statements or Briefings. Formal witness statements or briefings must be coordinated and reviewed for security and policy before being presented to the committee.

4.1. The staff team chief obtains coordination.

***4.2.** Subsequent to completion of the coordination cycle, the SAF/LL representative sends the statements or briefings to the Office for Security and Policy Review (SAF/PAX) and Office of Management and Budget (OMB) for clearance at least ten (10) working days before the hearing date.

4.3. After the SAF/LL representative obtains final policy and security clearance, the team chief is responsible for preparing the required number of copies along with a 3.5 inch diskette in Microsoft Word (classified statements or briefings must be marked with the appropriate classification).

***4.4.** SAF/LL sends the proper number of prepared statements or briefings to the Congressional committee, usually no later than 48 hours before the hearing.

5. Hearing Procedures. In addition to the requirements of this instruction and other applicable directives, the rules governing the appearance of witness(es) before a Congressional committee are established by the committee. The SAF/LL liaison officer advises the witness(es) of these rules. SAF/LL is responsible for ensuring transportation, hearing room security checks (as necessary), visual aids support, and whatever special requirements the committee or witness(es) may identify are accomplished. **Attachment 1** provides instructions for reviewing and editing a transcript of testimony at a Congressional hearing.

6. Posthearing Procedures:

6.1. After the hearing, SAF/LL produces a hearing résumé. The résumé summarizes the testimony and highlights significant items.

6.2. If, during the hearing, any commitment is made to furnish further information, or if the committee later requires additional information, SAF/LL informs the staff team chief so this requirement can be met.

6.3. SAF/LL sends a copy of the transcript to the staff team chief for review by the witness(es), editing, and for preparing additional material (Inserts or Questions for the Record (IFR/QFR)) required to complete the hearing. Each witness ensures a complete review of the transcript. The witness annotates the transcript to correct spelling, punctuation, and grammatical errors. These editorial changes are incorporated at the discretion of a committee. To make substantive changes correcting errors of fact and policy, the witness must provide detailed justification. The edited copy will then be provided to the staff team for incorporation of these edits into a master transcript.

***6.3.1** The Committee sends QFRs usually two to three weeks after a hearing. The QFRs are due back to the Committee within 21 days. It is the hearing officer's responsibility to task the QFRs out to the appropriate offices to provide answers. QFRs are sent to the witness for approval. Upon approval, QFRs are submitted to SAF/PAX

for security and policy review approval. After SAF/PAX approval, QFRs are given to OSD/LA for transmittal to the committee.

6.4. SAF/LL suspenses each reviewing or coordinating office.

6.5. When a committee requests a transcript be "sanitized" (classified security information deleted) to permit publication, SAF/LL advises the staff team chief. According to policy and guidance in AFPD 90-4 or AFI 90-401, recommended deletions (because of security issues) are made in pencil on the transcript, keeping the extent of deletions to the minimum, consistent with security.

6.6. The sanitized transcript, including IFRs/QFRs, is returned to the SAF/LL representative who, in turn, sends it to SAF/PA for security and policy approval.

7. Modifying These Procedures. When a lack of advance notice makes it necessary to modify these procedures, SAF/LL consults with the appropriate OSD, Secretariat, and Air Staff offices to ensure appropriate action is taken promptly to meet the desire of the committee.

WILLIAM A. DAVIDSON
Administrative Assistant

Attachment 1

INSTRUCTION FOR REVIEWING AND EDITING A TRANSCRIPT OF TESTIMONY AT A CONGRESSIONAL HEARING

Note: The team chief should follow these instructions in editing (or sanitizing) the transcript of a Congressional hearing (other than a hearing by an Appropriations or Budget Committee) for eventual public dissemination. There are two types of transcripts: unclassified and classified. Unclassified transcripts are from an open session. All transcripts of an "executive" session or closed hearing are handled as classified until final review by SAF/PAX.

Editing Procedures:

A1.1. Use only a black lead pencil (No. 2 or 3 lead, preferably).

A1.2. To make a substitution of language, draw a single line through the text to be deleted, and write the substituted language above the deleted text, if the substitution is too long to fit there, it may be typed on an extra sheet. Written justification is required. (Edit Air Force testimony only).

A1.3. Reviewer should make changes to the testimony of Members of Congress. When an error is noted or a minor correction is appropriated, lightly line through the error and legibly print the correction. Include office symbol, name, grade, and phone number of the individual making other than clerical corrections.

A1.4. Make only the minimum changes necessary to clarify the intent of the witness; to ensure continuity; and to correct grammar, spelling, or punctuation. In addition:

A1.4.1. Verify the name and title of each witness;

A1.4.2. Verify the accuracy of any statistical data;

A1.4.3. Note the location of any IFR/QFR the witness may have promised or the committee may have requested, and arrange to have the IFR/QFR prepared for submission (see procedure below); and

A1.4.4. Have the witness, or designated representatives, review and approve edited testimony.

Sanitizing Procedures:

A1.5. Mark all the classified facts and figures, by enclosing them in brackets [ ] in black lead pencil. Mark each classified word, phrase, sentence, or figure, regardless of what deletion does to the continuity or structure of the testimony. (Although an entire page

may be marked for deletion, the rule is to delete as little of the text as is consistent with security requirements). Place all appropriate classification and downgrade data in the margin beside the classified information.

A1.6. Enter the reviewer's name and office symbol in the margin of every page of which classified information has been deleted.

Inserts/Questions for the Record (IFR/QFR):

A1.7. Prepare each IFR/QFR separately on bond paper following the instruction (SAF/LL will provide format). Additional detailed guidance on the preparation of IFR/QFR for authorization and appropriation purposes is the Budget Enactment Instructions published by the Director of Budget.

A1.8. If the IFR/QFR is classified, stamp the page with the appropriate classification marking including all appropriate classification and downgrade data. (If the transcript is to be sanitized, the IFR/QFR will also be sanitized, using the method explained above).

A1.9. Have the witness or designated representative, review and approve the IFR/QFRs after it has been sanitized.